



NEW RESIDENT CHECKLIST FOR _____

Assessment Documents		
	Received by Grand Brook (Staff Signature)	Date Received
Signed Consent for Release of Medical Records		
Grand Brook Medical Paperwork		
Comprehensive Assessment by Grand Brook Nurse		
Move-In Paperwork		
Resident Agreement	Reviewed with Family by Grand Brook (Staff Signature)	Resident/Responsible Party Copy Provided (Responsible Party Signature)
EXHIBIT A	Fees*	* Must be completed by Grand Brook Memory Care ** Must be completed by Responsible Party *** Must be signed by Responsible Party or Medical POA
EXHIBIT B	POA and Advance Dir.**	
EXHIBIT C	Authorizations***	
EXHIBIT D	Medications Policy	
EXHIBIT E	Restraint Policy***	
EXHIBIT F	Grievance Policy	
EXHIBIT G	Activities Release**	
EXHIBIT H	Pet Addendum***	
EXHIBIT I	Options Counseling**	
EXHIBIT J	Resident Bill of Rights***	
Other Disclosures	Reviewed by Grand Brook (GB signature)	Reviewed with Family (RP signature)
Disclosure Statement		
Community Contact Sheet		
Emergency Evacuation Plan		
	Grand Brook (signature)	Date Received
Portrait of Resident		
Mailing List Request		
Family Survey		
Additional Services	Grand Brook (signature)	Date Received
Salon Profile		
Landline/Phone (Telecalm)		
Document Copies	Grand Brook (signature)	Date Received
Insurance/Medicare Cards		
TB Test Results		
Power of Attorney or Guardianship Papers		
Advanced Directives (IF APPLICABLE)		



GRAND BROOK
MEMORY CARE

RESIDENT AGREEMENT

RESIDENT AGREEMENT

Resident, through the Responsible Party, has requested accommodations and services at Grand Brook Memory Care of Rogers at Promenade and Grand Brook Memory Care has accepted Resident's request. This Resident Agreement (the "Agreement") is made between Grand Brook Memory Care and Responsible Party for the benefit of Resident. This Agreement is a month to month agreement and may be terminated at any time by either party as provided in Section 7.

1. DEFINITIONS

Resident: _____

Community: Grand Brook Memory Care of Rogers at Promenade

Grand Brook Memory Care is licensed by the State of Arkansas as an Assisted Living ASCU Level II facility.

Responsible Party: _____

Responsible Party represents that it is the authorized legal representative of Resident and further acknowledges that the terms of this Agreement are fully binding upon Responsible Party and its heirs, legal representatives, successors and assigns. Responsible Party further acknowledges that it is required to fully comply with the terms of this Agreement and that Grand Brook Memory Care is materially relying on these representations by executing this Agreement.

The Responsible Party understands and agrees that the Resident's age, application forms, health history and medical report, personal interview and emergency information records are a part of this Agreement, and any material misrepresentation or omission made by the Responsible Party as to the Resident's age and health history shall render this Agreement voidable at the option of Grand Brook Memory Care.

Room: # _____ Private

Move In Date: _____
Effective Date of Agreement

2. ACCOMMODATIONS AND SERVICES

Beginning on the Move In Date, in exchange for the fees outlined in Exhibit A, Grand Brook Memory Care shall provide the following accommodations and services to Resident under the terms, conditions and limitations contained in this Agreement.

Accommodations

- 1. Resident's Room.** Resident is authorized to occupy and use the Room. Resident is encouraged to personalize the Room by providing the Resident's own furnishings and decorations provided all personal decorations must comply with the safety rules of Grand Brook Memory Care. Grand Brook Memory Care reserves the right to approve all furniture and fixtures the Resident adds to the Room. Responsible Party may complete the Room Inspection prior to the Move In date for the purposes of determining liability for

damages, if any, to the Room. Grand Brook Memory Care can provide basic furnishings for the Room upon request of Responsible Party.

2. **Alterations.** The Resident may not make any structural or physical changes to the Room, including the modification or addition of locks or locking devices, without the prior written consent of Grand Brook Memory Care. Any changes or modifications to the Room which require the assistance of electricians, contractors or similar professionals must be approved in advance by Grand Brook Memory Care.

Health and Personal Care Services

1. **Monitoring.** Grand Brook Memory Care, through its 24 hour staff, shall regularly monitor the Resident's health status to identify any changes in the Resident's physical, mental, emotional and social functioning. Regular, at least annual, assessment of Residents' needs will be performed and if additional services are required the appropriate referral will be made in coordination with Resident's family and physician.

As part of such monitoring, Grand Brook Memory Care may monitor common areas of the Community with video cameras; however, the Resident will not be videotaped in the Room.

2. **Assistance with Activities of Daily Living.** As needed, Grand Brook Memory Care will make available to the Resident assistance with dressing, grooming, bathing, feeding and administration of medication and other activities of daily living, to the extent allowed by applicable state law.
3. **Assistance with Storage and Administration of Medications.** Through its staff, Grand Brook Memory Care will assist the Resident with storage and administration of medications to the extent allowed by state law and in accordance with the Medication Policy, attached as Exhibit D.
4. **Meals and Snacks.** Three nutritionally well-balanced meals per day are included with Basic Services. Modified meals for special diets will be available to the Resident if prescribed by the Resident's physician as a medical necessity. Snacks are available to the Resident at all times. Meals and snacks may be served in the resident's apartment at no additional charge.
5. **Housekeeping.** Grand Brook Memory Care will provide basic daily housekeeping services including cleaning of common areas and resident's private room and bath.
6. **Laundry.** Grand Brook Memory Care will provide laundry service (wash, fold, return to Resident's room) for personal clothes and linens. Grand Brook Memory Care has available to each Resident 3 sets of sheets, pillowcases, bath towels, washcloths, 1 blanket, and 1 pillow. Linen service will be provided at least weekly.
7. **Activities.** To meet the Resident's physical, social, mental and spiritual needs, Grand Brook Memory Care will provide a full program of activities on a daily basis. The Resident will be provided with the use of the common areas such as living rooms/TV rooms, lounges, craft rooms, library, meeting rooms and outside courtyards (when weather permits).
8. **Transportation:** Grand Brook Memory Care will make available, at the Responsible Party's expense, transportation arrangements for Residents in order to keep appointments for medical, dental, social, political or other services deemed necessary. Additionally, Grand Brook Memory Care may provide transportation for its residents for regular scheduled outings as part of the life engagement program.

Personal Funds

Grand Brook Memory Care will provide for the safekeeping and accountability of residents' personal funds upon written request from the designated power of attorney not to exceed a balance of \$15.00. A reconciliation of funds will be provided on a quarterly basis.

Emergency Authorization

In the event of an emergency or change in medical condition, including but not limited to warning signs of stroke, heart attack and/or respiratory distress, Grand Brook Memory Care staff is authorized to summon emergency medical services to assist the Resident by calling "911" or otherwise summoning appropriate medical services personnel 24-hours a day.

Excluded Services

Except as otherwise expressly stated in this Agreement, the Resident/Resident responsible party is responsible for arranging, furnishing, and paying for any of the Resident's health and medical care services, including, without limitation, hospital services, physicians' services, emergency transportation including ambulance services, nursing services including skilled nursing facility charges, private duty personnel such as home health services, medications, vitamins, eye glasses, eye examinations, hearing aids, ear examinations, dental work, dental examinations, orthopedic appliances, laboratory tests, x-ray services, any rehabilitative therapies (physical, occupation, or speech), podiatry services, IV therapy, oxygen therapy, equipment rentals, in-room utilities such as private phone or cable, barber/beauty shop appointments, incontinence supplies, and personal hygiene supplies (e.g. shampoo, soap, toothbrush). The cost of some or all of these excluded services may be covered by Medicare.

Health Needs Which Grand Brook Memory Care Cannot Meet

Should the Resident need health services which cannot be provided in the Community, either by Grand Brook Memory Care staff or third-party providers with whom the Resident or Responsible Party contracts, Grand Brook Memory Care will immediately notify the Responsible Party to assist in transitioning the Resident to an appropriate care setting.

3. RESIDENT'S RIGHTS AND RESPONSIBILITIES

Absences from Community

Resident is free to leave the Community at any time so long as Resident is accompanied with a person authorized in writing by the Responsible Party. Grand Brook Memory Care is not responsible for any obligations or expenses incurred by the Resident outside of the Community. The Responsible Party agrees to notify Grand Brook Memory Care in advance of such absence. The Responsible Party agrees to ensure that the Resident is signed out of the building upon leaving each time and signed in to the building upon returning.

Rules and Regulations

Responsible Party agrees to ensure that the Resident will abide by and conform to the rules, regulations, policies and principles as they now exist for the operation and management of the Community and such reasonable amendments to the above as Grand Brook Memory Care may subsequently adopt. The Resident shall also have the rights set forth in the Statement of Residents' Personal Rights. Residents will not be required to perform services for Grand Brook Memory Care.

Health Records

Grand Brook Memory Care maintains a separate Resident record on each of its Residents which may contain medical and other personal information. All information and records regarding Residents are confidential and are not released without written consent of the Resident or their authorized legal representative. Grand Brook Memory Care' licensing agency has the authority to examine such medical records as part of the agency's evaluation of the Community. In addition, each Resident has the right to review their Resident record.

Evaluation and Compliance (Shared Risk Agreement)

Resident or Resident Responsible Party must cooperate in an examination by a physician or advance practice nurse or licensed psychologist of his or her own choosing to determine the resident's health or mental status at the request of Grand Brook Memory Care to establish appropriateness for residency. Responsible Party agrees to participate in negotiated compliance agreements with Grand Brook Memory Care if a medical reason exists.

No Proprietary Interests

The Resident's rights under this Agreement are the rights and privileges expressly granted, and do not include any proprietary interest in the Community / Grand Brook Memory Care or other properties of Grand Brook Memory Care.

4. ACCESS/VISITATION

Access to the Room

Grand Brook Memory Care staff may enter the Room at reasonable times and for reasonable purposes to properly offer services including inspection, maintenance and other services described in this Agreement. Under Grand Brook Memory Care license, a duly authorized agent of the state may, after providing proper identification and stating the purpose of his or her visit, enter and inspect the entire Community, including the Room, at any time without advance notice.

Guest Visits

Grand Brook Memory Care encourages family and friends to visit the Resident, subject to the Community / Grand Brook Memory Care Rules and Regulations. Grand Brook Memory Care encourages regular family involvement with the Resident and provides ample opportunities for family participation in activities at the Community.

Overnight guests are permitted pursuant to advance approval by the Executive Director/Administrator.

5. ASSUMPTION OF THE RISK/SHARED RISK

Most residents have a diagnosis of cognitive impairment or neurological deficits, dementia, psychiatric or mental condition. Whatever the causes of the symptoms or behaviors, the staff at Grand Brook Memory Care will assist Residents and families in understanding the importance of providing appropriate care for each resident and certain inherent risks associated with disease processes. At Grand Brook Memory Care, we are committed to protecting the rights and well-being of every Resident and there are some risks that are unavoidable in any community care setting, including but not limited to: wandering inside or outside of the Community (elopement); resident to resident altercation; loss of skin integrity; loss of personal, sentimental or monetary property; change in human intimacy behavior; dehydration; falls; later stage weight loss; disease progression. Responsible Party hereby holds harmless and releases the Community from all liability arising out of any injury, loss, claim or damage which may be sustained by the Resident due to anything other than the willful misconduct of Grand Brook Memory Care and its employees.

Grand Brook Memory Care is not responsible for damages or loss of any property (including but not limited to jewelry, cash, credit cards, furniture, documents, family heirlooms, hearing aids, glasses, etc.) belonging to the Resident due to theft or any other cause. The Responsible Party is responsible for paying for and maintaining insurance to cover damage to or loss of the Resident's property, if desired.

6. CHANGE OF ACCOMMODATIONS

Grand Brook Memory Care reserves the authority to determine and make all arrangements regarding residency, including admission and dismissal of the Resident and other residents and adjustments in rates and accommodations consistent with state law and Grand Brook Memory Care policies. Grand Brook Memory Care also reserves the right to change the location of the Resident's Room following thirty (30) days written notice (or less if allowed by law) to the Responsible Party.

Move to New Room

If, at the Responsible Party's request, the Resident wishes to change Rooms within the Community, subject to availability and at the discretion of the Community considering the health and welfare of all Residents, the Responsible Party will be responsible for paying the actual cost of moving the Resident.

7. TERM AND TERMINATION OF AGREEMENT

All Notices of Termination under the provisions below must be provided in writing.

By Responsible Party

The Responsible Party may terminate this agreement within the first 14 days of admission without notice and the date of termination will be based on the date through which benefits are no longer conferred. After the 14th day of admission, the Responsible Party may terminate this Agreement by giving thirty (30) days written notice of termination to Grand Brook Memory Care. The notice must identify the date when the termination is to become effective, which date must be at least thirty (30) days after the date of the notice. The termination date will be determined based on the later of the above effective date of notice or actual date of move out.

By Grand Brook Memory Care

Grand Brook Memory Care may terminate this Agreement with a 30 –day written notice:

1. The Responsible Party fails to pay the Basic Services Rate or additional charges for services the Responsible Party has requested within ten (10) days of the due date.
2. The Resident fails to comply with state or local law after receiving written notice of an alleged violation of the same.
3. The Community / Grand Brook Memory Care changes use and is no longer operated as an ASCU Level II Assisted Living Facility by the State of Arkansas.
4. For ongoing medical care or services required for the Resident that exceeds what Grand Brook Memory Care is authorized by our license to provide.
5. Resident or Responsible party fail to comply with the defined Resident / Responsible Party Responsibilities under section 3 of this agreement.

Notwithstanding the foregoing, if the Resident or any person associated with Resident is engaging in behavior which threatens the Resident's or other residents' or staff's mental and/or physical health or safety, Grand Brook Memory Care may terminate this Agreement by giving the Responsible Party the minimum number of days written notice as allowed by state law. During the notice period, Responsible Party may be required to provide one on one care for the Resident twenty-four (24) hours a day at Responsible Party's expense.

In the event of involuntary discharge in accordance with above provisions, the termination date will be determined based on the actual date the resident moved out and vacated all belongings from the room.

Death

This Agreement shall terminate upon a Resident's death and the termination date will be based on the date of death pursuant to the below provision for vacating the room.

Vacating the Room

Upon termination of this Agreement for any reason, the Responsible Party or the Resident's estate shall vacate the Room, remove all of the Resident's belongings from it, and return all of the Resident's keys to Grand Brook Memory Care on or before the date stated in the written notice of termination or ten (10) days after death. After the date stated in the written notice of termination or ten (10) days after death, the Responsible Party or the Resident's estate shall remain liable, on a prorated basis, for the Basic Services Rate until the Room is vacated and all of the Resident's property is removed.

Prorated Charges and Refund Policy

All monthly charges for the basic services rate or other charges will be prorated based on the termination date pursuant to any of the above events of discharge. The Community Fee will be fully refundable within the first 14 days after admission in any event of discharge and non-refundable thereafter. Upon discharge, prorated adjustments will be calculated and a final invoice sent to the Responsible Party. In the event of a prepaid balance, after adjustment

upon termination, refunds will be provided, on a pro-rata basis regardless of income source, and released on the date of discharge or within 10 days after discharge if notice is not provided.

Effect of Termination

Any termination of this Agreement under this Section shall terminate Grand Brook Memory Care obligation to furnish accommodations and services to the Resident. Upon payment of any refund provided for above, Grand Brook Memory Care shall be discharged from any further obligations to the Resident under this Agreement.

8. PROPERTY OF GRAND BROOK MEMORY CARE

No Tenancy Interest or Management Rights

This Agreement gives the Resident the right to live in the Community and to have as much freedom and choice regarding the Resident's life there as possible. However, it does not give the Resident the rights of a "tenant" as that term is defined by state law. Grand Brook Memory Care reserves the sole right to provide management of the Community in the best interests of all residents and reserves the right to manage or make all decisions concerning the admission, terms of admission or dismissal of other residents consistent with state law.

Liability for Damage

The Responsible Party agrees to ensure that the Resident maintains the Room in a clean, sanitary and orderly condition. The Responsible Party shall reimburse Grand Brook Memory Care for the repair to the Room and for the repair or replacement of furnishings and fixtures owned by Grand Brook Memory Care in the Room above and beyond ordinary wear and tear. In addition, the Responsible Party shall reimburse Grand Brook Memory Care for any loss or damage to the Community's real or personal property outside of the Room caused either intentionally or negligently by the Resident or by persons on the premises with the Resident's permission.

9. MISCELLANEOUS PROVISIONS

Waiver

The failure of Grand Brook Memory Care in one or more instances to insist upon the strict performance, observance or compliance by the Responsible Party with any of the terms and provisions of this Agreement, shall not be construed to be a waiver or relinquishment by Grand Brook Memory Care of its right to insist upon strict compliance by the Responsible Party with all of the terms and provisions of this Agreement.

Assignment

Grand Brook Memory Care may assign this Agreement at its discretion. The Responsible Party may not assign this Agreement to any other party.

Severability

If any provision of this Agreement is determined by a court of competent jurisdiction to be unenforceable, this Agreement shall be read as if such unenforceable provision was not included and all other provisions of this Agreement shall continue in full force and effect. Resident and Responsible Party acknowledge and represent that they read and understand this agreement, and all attachments and that they have not received any oral representations and are not relying on any verbal statement, promise, condition or stipulation, actual or perceived, from Grand Brook Memory Care or its employees, agents and representatives not specifically set forth in this Agreement or the attachments. Further, Resident and Responsible Party acknowledge and represent that they are not relying upon any oral representation, statement, promise, condition, or stipulation made or allegedly made by Grand Brook Memory Care or its employees, agents, or representatives in executing this agreement. Resident and Responsible Party understand that Grand Brook Memory Care is relying on this acknowledgment and representation and that Grand Brook Memory Care would not execute this Agreement without such acknowledgment and representation. This Agreement contains the entire agreement between Resident, Responsible Party and Grand Brook Memory Care and replaces all prior agreements, if any, between these parties. Grand Brook Memory Care is not bound by any representation, statement, promise, condition or stipulation not specifically contained in this Agreement.

Governing Law

This Agreement shall be governed by and construed under the laws of the State of Arkansas, except as to conflicts of laws issues.

Attorney’s Fees and Damages

In the event any action is brought by either party to enforce or interpret the terms of this Agreement, the prevailing party in such action shall be entitled to its costs and reasonable attorneys' fees incurred therein from the non-prevailing party, in addition to such other relief as the court may deem appropriate. Resident and Responsible Party acknowledge and represent that their sole remedy for any damage, loss, injury or claim arising out of or relating in any way to this agreement, the residence or resident’s occupancy at the residence shall be a credit, if any is available, to the remainder of the basic service rate.

Notice

Notices required by this Agreement shall be in writing and delivered either by personal delivery, Express Mail, or certified or registered mail, return receipt requested, with all postage and charges prepaid. All notices and other written communications required under this Agreement shall be sent to the addresses listed below or to an address specified by subsequent written notice to the Responsible Party or to Grand Brook Memory Care. If the Responsible Party's contact information changes, please notify Grand Brook Memory Care as soon as possible.

If to Grand Brook Memory Care:

Constant Care Management Company
Attn: Resident Terminations
7708 San Jacinto Place Unit #100
Plano, TX 75024

If to Responsible Party:

IN WITNESS WHEREOF, Grand Brook Memory Care and Responsible Party have each executed an original version of this Agreement.

RESPONSIBLE PARTY:

Name: _____

Signature

Date

SECONDARY RESPONSIBLE PARTY:

Name: _____

Signature

Date

**CONSTANT CARE MANAGEMENT COMPANY: as Agent of
Grand Brook Memory Care of Rogers at Promenade**

Name: _____

Its: _____

Signature

Date



Resident Information				Admission Date:	
Last Name	First	MI	Sex	Place and Date of Birth	Marital Status
Moving From (Current Address)				City, State, Zip	
Social Security Number			Lifetime Occupation		
Medical Information					
Diagnosis					
Allergies					
Physician				Telephone Number	
Dentist				Telephone Number	
Hospital Preference				Pharmacy Preference	
Medicare # (Attach Copy of Card)				Other Insurance/Long Term Care Provider (Attach Copy of Card)	
Responsible Party					
Name, Relationship				Signature	
Address				City, State, Zip	
Primary Phone ☐ Home ☐ Work ☐ Cell		Alternate Phone ☐ Home ☐ Work ☐ Cell		E-Mail Address	
Emergency Contacts (Medical)					
Name				Relationship to Resident	
Address				City, State, Zip	
Primary Telephone		Alternate Phone Number		E-Mail Address	
Secondary Contact				Relationship to Resident	
Address				City, State, Zip	
Primary Telephone		Alternate Phone Number		E-Mail Address	
Mortuary					
Name				Telephone	
Address				City, State, Zip	
Mortuary Signature					

EXHIBIT A FEES

Resident Name _____ Unit # _____ Effective Date _____

Basic Services Rate

The Basic Services Rate, as of the date of this Agreement, is \$ _____ per month. This amount is due and payable monthly in advance by the first (1st) day of each calendar month. A late charge of twenty-five dollars (\$25.00), plus interest at the maximum legal rate, shall be assessed if the Basic Services Rate is not paid by the fifth (5th) day of the month. The Resident's right to occupy and use the Room and to receive other services under this Agreement is contingent upon timely payment of the Basic Services Rate.

The Responsible Party is responsible for paying the Basic Services Rate even when the Resident is absent from the Room or the Community, including, but not limited to, times when the Resident is on vacation or when the Resident has been transferred temporarily to a skilled nursing facility, a hospital, or any other outside health care facility.

Ancillary Services

Additional amenities for Salon Services and/or Personal Care Supplies are available upon request and may be provided through third-party agencies. Billed charges from these agencies may be reflected on your monthly invoice.

Dual Occupancy

Applied \$ _____ ☐ Not Applied

Grand Brook Memory Care permits dual occupancy of selected rooms. If the Room is going to be shared, the Dual Occupancy Rate will be applied and added to the Basic Services Rate while the room is dual occupied. If there are two Residents sharing the Room, in the event of the death or transfer of one of the Residents during the term of this Agreement, the remaining Resident may remain in the Room upon the payment of the current Basic Services Rate. The Dual Occupancy Rate will no longer be available upon the transfer or death of the sharing occupant. If the remaining Resident wishes to transfer to a single Room, he or she may do so, upon payment of the current Basic Services Rate for a single occupancy room, when one becomes available.

Community Fee

The Community Fee is \$ _____ and is payable on or before the Move In Date. This fee is nonrefundable. In the event a Resident moves out of the Residence prior to the Community Fee being paid in full, the balance of the Community Fee will become due and payable upon move out.

Adjustments to Rates

Grand Brook Memory Care shall have the right, no more than once annually and upon thirty (30) days' written notice to the Responsible Party, to change the Basic Services Rate and other fees and charges.

Additional Terms

Payment Collected:

Community Fee ☐ Yes ☐ No
Prorated Charges ☐ Yes ☐ No

Amount: _____
Amount: _____

Check Number:
Check Number:

Automatic Draft - to be processed for:

☐ Community Fee ☐ Prorated Charges

Peace of Mind Pricing* ☐ yes ☐ no

*Peace of mind pricing guarantees the rate and room selection in this agreement.
Any changes to the residents room does void Peace of Mind Pricing.

Preferred Method for Statements Email ☐ Mail ☐ Email Address(es): _____

Signature of Responsible Party

Printed Name

Date

EXHIBIT B
POWER OF ATTORNEY AND ADVANCE DIRECTIVES

It is the policy of Grand Brook Memory Care to ask all prospective residents whether they have executed any advance directives. This includes health care powers of attorney, living wills, or other documents which describe the amount, level or type of health care the Resident would want to receive at a time when the Resident can no longer communicate those decisions directly to a doctor or other health care professional. It also includes documents in which the Resident names another person who has the legal authority to make health care decisions for the Resident. It is the Responsible Party's responsibility to advise Grand Brook Memory Care staff of any advance directives and to provide a copy of any such documents to Grand Brook Memory Care. Grand Brook Memory Care will provide copies of these documents to health care professionals who may be called to assist the Resident with health care. If the Resident revokes or changes an advance directive, it is also the Responsible Party's responsibility to inform Grand Brook Memory Care of such revocation or change. This is required so that Grand Brook Memory Care can assist the Resident in ensuring the Resident's health care choices are properly communicated to the Resident's health care professionals.

Power of Attorney (PoA) (All Power of Attorney documents must be attached to Resident Agreement)		
☐ Yes ☐ No	Name	Relationship to Resident
Financial ☐ Yes ☐ No	Name	Relationship to Resident
Guardian (All Guardianship documents must be attached to Resident Agreement)		
☐ Yes ☐ No	Name	Relationship to Resident
If the Power of Attorney resigns or is unable to serve, please list an Alternate PoA:		
Name	☐ Medical ☐ Financial	Relationship to Resident
Address		City, State, Zip
Primary Telephone	Alternate Phone Number	E-Mail Address
Name	☐ Medical ☐ Financial	Relationship to Resident
Address		City, State, Zip
Primary Telephone	Alternate Phone Number	E-Mail Address
Advance Directives (All Advance Directives must be attached to the Resident Agreement)		
Living Will ☐ Yes ☐ No	Do Not Resuscitate (DNR) ☐ Yes ☐ No	
Healthcare Proxy ☐ Yes ☐ No	Out of Hospital DNR ☐ Yes ☐ No	

**EXHIBIT C
AUTHORIZATIONS**

****If a Medical Power of Attorney has been designated by the Resident, the
Medical Power of Attorney must complete and sign this Exhibit****

I _____ as _____ Responsible Party or _____ Medical Power of Attorney, for the Resident, hereby make the following authorizations regarding the care of the Resident, the disclosure of his or her medical condition, and the rights of certain persons to accompany the Resident outside of the Community:

Privacy Policy/Authorizations
All Resident information is treated as confidential and will be collected, maintained and stored in compliance with the Health Insurance Portability and Accountability Act of 1996 (HIPAA).
Please list all persons authorized to direct Resident's medical care:
Please list all persons authorized to receive information regarding Resident's care and condition:
Please list all persons authorized to accompany the Resident out of the Community:

Signature of Responsible Party or Medical Power of Attorney

Date

Printed Name

A copy of this Exhibit must be maintained in the Resident's medical record.

EXHIBIT D

MEDICATIONS POLICY

All residents are provided medication assistance including supervision and/or administration performed by a licensed/certified staff member in accordance with the Board of Nursing Nurse Practice Act. The amount and type of assistance will be defined in the Resident's service plan and will be in accordance with the following terms:

- All prescribed medications must be dispensed through a pharmacy or by the Resident's treating physician or dentist.
- Sample medications may be used only if the medication has specific dosage instruction for the individual.
- For residents who use the preferred pharmacy, Grand Brook Memory Care will request refills on your behalf to maintain the medication supply.
- For prescriptions filled through a pharmacy other than the preferred pharmacy, the Responsible Party must request refills and maintain the medication supply on behalf of the Resident.
- For the safety of our residents, all medications are stored in the locked medication room and are not to be kept in a resident's room. At no time shall a resident assume responsibility for his/her own medications.

EXHIBIT E
USE OF RESTRAINT AND SECLUSION POLICY

In accordance with the Resident's Bill of Rights, Grand Brook Memory Care prohibits administering to a Resident any physical restraint including those that:

- Obstructs the Resident's airway, including a procedure that places anything in, on, or over the Resident's mouth or nose;
- Impairs the Resident's breathing by putting pressure on the torso;
- Interferes with the Resident's ability to communicate.

Grand Brook Memory Care prohibits the use of seclusion.

Signature of Responsible Party

Date

Printed Name

EXHIBIT F
RESIDENT GRIEVANCES

Grievances that have not been resolved to a Resident's or Responsible Party's satisfaction should be handled in the following manner:

1. Resident and/or Resident's Responsible Party should first discuss the complaint with the Executive Director to cooperatively identify resolutions to the issue(s).
2. If the complaint cannot be resolved through the Executive Director, the complaint should be submitted in writing to the Vice President of Operations. The Vice President of Operations should respond in writing to the Resident and/or Resident's Responsible Party within seven (7) days of receipt of the complaint.
3. If the complaint cannot be resolved through the Vice President of Operations, the written complaint and the response from the community shall be submitted to the owner at:
Complaint Resolution
7708 San Jacinto Place Unit 100
Plano, TX 75024
4. A prompt response to the grievance or concern will be provided by the home office. Complex problems may require time to resolve and some problems may not have a resolution. Whatever the case, the Resident and Responsible Party will be given a reasonable explanation for the action(s) taken on their behalf.
5. Whenever possible and in whatever capacity is possible, residents and responsible parties will be asked to participate in determining the solution and assist in bringing about the agreed upon resolution. The home office and Executive Director will ensure a written resolution to the grievance is developed, documented and signed into the Resident's service plan.
6. The Resident or Resident's Responsible Party may also contact the local State Care Ombudsman if the above steps do not result in a resolution. The Local Ombudsman may be reached at (501) 682- 8952. In cases of suspected abuse (verbal, fiduciary, psychological or physical) or exploitation, community management will call upon the expertise of the State governing licensing agency to address the problem. You may also report to the Office of Long-Term Care hotline at 1-800-582-4887 or email: complaints.oltc@arkansas.gov

EXHIBIT G
ACTIVITY RELEASE FORM

As the Responsible Party of _____ ("Resident"), a resident of
Grand Brook Memory Care of _____ ("Residence"):

TRANSPORTATION RELEASE

☐ I consent
☐ I do not consent

To the participation in activities off the grounds of the Residence. I understand that such excursions will require transportation by auto, van or bus. I understand that Residents will not be forced to participate in field trips, rather, they will be offered the opportunity to participate.

Additionally, from time to time, Grand Brook Memory Care may transport Residents in personal vehicles.

Responsible Party hereby holds harmless and releases the Community from all liability arising out of any injury, loss, claim or damage which may be sustained by the Resident in Grand Brook Memory Care vehicles or personal vehicles due to anything other than the willful misconduct of Grand Brook Memory Care and its employees.

PHOTO RELEASE

☐ I consent
☐ I consent to limited use in Grand Brook Memory Care's newsletters
☐ I do not consent

To the Resident's name or likeness appearing in photographs, quotes, or mentions in Grand Brook Memory Care's social media and marketing sources. Social media and marketing sources may include but are not limited to:

- | | |
|---------------------------------|------------------------|
| • Facebook | • Newsletters |
| • Twitter | • Pamphlets |
| • Pinterest | • Brochures |
| • Website (Community & Company) | • Educational Articles |

MAIL

Give the Residence permission to:

☐ Forward business mail to _____
☐ Forward personal mail to Resident's Legal Guardian (NOTE: As stated in Resident's Bill of Rights personal mail must be delivered to the Resident, unless otherwise requested by the Resident's Legal Guardian.)

Signature of Responsible Party

Date

Printed Name

**EXHIBIT H
PET ADDENDUM**

THIS PET ADDENDUM is attached to and made a part of the Resident Agreement made between Grand Brook Memory Care and Responsible Party for the benefit of Resident.

Responsible Party desires for Resident to keep the following Pet described below in Resident's Room:

Type of Dog: _____ Weight: _____ (All dogs must be less than 30 pounds)

Grand Brook Memory Care recognizes pets can be beneficial to the psychosocial well-being of our residents and therefore allows dogs, provided they are approved by the Community Executive Director according to pet policy. Residents may keep pets so long as the resident, a family member or other party can care for them and maintain the pet's environment in a clean and sanitary condition.

In the community setting, courtesy and consideration for our other residents and guests is of utmost importance. In order to keep a pet in the community, you agree to the following:

- 1) Pet is current on all required vaccinations. Should Pet require any veterinary care during its stay at the community, all such care will be at the Responsible Party's arrangement and expense.
- 2) Pet cannot behave in a manner that at any time, poses a distraction or risk to the Resident, staff, or other Residents of the community.
- 3) Staff of Grand Brook Memory Care will have the sole discretion in determining areas where Pet may be allowed within the community and Pet may be required to be leashed at all times Pet is outside of Resident's Room.
- 4) For various reasons, Grand Brook Memory Care reserves the right to request Pet be removed from the community. In such event, Responsible Party agrees to permanently remove the Pet from the Grand Brook Memory Care as soon as possible after receiving the request from Grand Brook Memory Care.

Responsible Party agrees that Grand Brook Memory Care will not be responsible for the injury, harm, or death of Pet, and agrees to hold Grand Brook Memory Care harmless for any damages suffered as a result of any harm caused to the Pet or by the Pet upon another person, guest or employee.

Responsible Party shall be responsible for the entire amount of all damages caused by the Pet.

Signature of Responsible Party

Date

Printed Name

GRAND BROOK MEMORY CARE:

Signature

Date

EXHIBIT J

Residents' Bill of Rights

A resident has all the rights, benefits, responsibilities, and privileges granted by the constitution and laws and regulations of this state and the United States except where lawfully restricted. The resident has the right to be free of interference, coercion, discrimination, or reprisal in 53 Assisted Living Facilities Level II R. 08/01/11 exercising these civil rights.

In addition to the provisions of Section 603.1(1)(2), each resident in the assisted living facility has the right to, and the facility shall ensure that residents shall:

- A. Be free from physical or mental abuse, including corporal punishment;
- B. Be permitted to participate in activities of social, religious, or community groups unless the participation interferes with the rights of others;
- C. Be provided a schedule of individual and group activities appropriate to individual resident needs, interests and wishes;
- D. Be, at a minimum, provided: (i.) In-house activities and programs, the character and scope of which shall be disclosed to potential residents or their responsible parties in writing as part of the application process; (ii.) Group recreation and socialization;
- E. Not be prevented in any way from the practice of the religion of the resident's choice. The assisted living facility shall not be expected to participate or facilitate the practice of religion beyond arranging or coordinating transportation to the extent possible;
- F. Be treated with respect, kindness, consideration, and recognition of his or her dignity and individuality, without regard to race, religion, national origin, sex, age, disability, marital status, sexual orientation or source of payment. This means that the resident: (i.) has the right to make his or her own choices regarding personal affairs, care, benefits, and services, (ii.) has the right to be free from abuse, neglect, and exploitation, and (iii.) if protective measures are required, has the right to designate a guardian or representative to ensure the right to quality stewardship of his or her affairs to the extent permitted by law; 54 Assisted Living Facilities Level II R. 08/01/11
- G. Be provided a safe and appropriate living environment;
- H. Not be confined to his or her apartment or bed;
- I. Not be prohibited from communicating in his or her native language with other residents or personnel/staff/employees;
- J. Be permitted to complain about the resident's care or treatment. The complaint may be made anonymously or communicated by a person designated by the resident. The provider must promptly respond to resolve the complaint. The provider must not discriminate or take any punitive, retaliatory, or adverse action whatsoever against a resident who makes a complaint or causes a complaint to be made;
- K. Be allowed to receive and send unopened mail, and the provider must ensure that the resident's mail is sent and delivered promptly;
- L. Be allowed communication, including personal visitation with any person of the resident's choice, including family members, representatives of advocacy groups, and community service organizations;
- M. Be allowed to make contacts with the community and to achieve the highest level of independence, autonomy, and interaction with the community of which the resident is capable;
- N. Be allowed to manage his or her financial affairs. The resident may authorize in writing another person to manage his or her money. The resident may choose the manner in which his or her money is managed, including a money management program, a representative payee program, a financial power of attorney, a trust, or a similar method, as desired by the resident. The resident or his or her responsible party must be given, upon request of the resident or his or her responsible party, but at least quarterly, an accounting of financial transactions made on his or her behalf by the facility should the facility accept his or her written delegation of this responsibility to the facility in conformance with state law. Further, if a facility agrees to manage residents' funds, the facility shall indemnify and hold harmless the resident from any loss of or theft of funds;
- O. Be allowed access to the resident's records. Resident records are confidential and may not be released without

the resident's or his or her responsible party's consent unless the release without consent is required by law; 55 Assisted Living Facilities Level II R. 08/01/11

P. Have the right and be allowed to choose and retain a personal physician or advance practice nurse;

Q. Participate in the development of the individual direct care services and health care services plan portions of his or her occupancy admission agreement that describes the resident's direct care services and how the needs will be met;

R. Be given the opportunity to refuse medical treatment or services after the resident or his or her responsible party: (i.) is advised by the person providing services of the possible consequences of refusing treatment or services, and (ii.) acknowledges that he or she understands the consequences of refusing treatment or services;

S. Be allowed unaccompanied access to a telephone;

T. Have privacy while attending to personal needs, and a private place for receiving visitors or associating with other residents, unless providing privacy would infringe on the rights of other residents. The right applies to medical treatment, written communications, telephone conversations, meeting with family, and access to resident councils;

U. If married, have the right to share an apartment or unit with his or her spouse even if the spouse is not receiving services through the assisted living facility. In the case of two consenting adults, if one or both is receiving services through the assisted living facility, the couple shall have the right to share an apartment or unit;

V. Be allowed to retain and use personal possessions, including, but not limited to, clothing and furnishings, as space permits. The number of personal possessions may be limited for the health and safety of other residents;

W. Be allowed to determine his or her dress, hairstyle, or other personal effects according to individual preference, except the resident has the responsibility to maintain personal hygiene;

X. Be allowed to retain and use personal property in his or her immediate living quarters and shall have a lockable apartment or unit door; 56 Assisted Living Facilities Level II R. 08/01/11

Y. Be allowed to refuse to perform services for the facility;

Z. Be informed by the assisted living facility no later than the 30th day after admission: (i.) whether the resident is entitled to benefits under Medicare or Medicaid, and (ii.) which items and services are covered by these benefits, including items or services for which the resident may not be separately charged;

AA. Residents are discharged or transferred in conformity with Ark. Code Ann. § 20-10-1005 and the provisions governing transfer and discharge in these regulations.

BB. Be allowed to immediately leave the assisted living facility, either temporarily or permanently, subject to contractual or financial obligations as specified in Section 601.3(g);

CC. Have access to the services of a representative of the State Long Term Care Ombudsman Program, Arkansas Department of Human Services, Division of Aging and Adult Services;

DD. Be allowed to execute an advance directive or designate a guardian in advance of need to make decisions regarding the resident's health care should the resident become incapacitated.

EE. Receive reimbursement from the facility for any lost, misappropriated, or destroyed property or funds, when the loss, misappropriation, or destruction, occurs at a time in which the facility was exercising care or control over the funds or properties, including loss or destruction of residents' property that occurs during laundering or cleaning of the facility, the resident's room, or the resident's property, excluding normal wear and tear.

Signature of Responsible Party

Date

Printed Name

ARBITRATION AGREEMENT

AGREEMENT TO RESOLVE DISPUTES BY BINDING ARBITRATION

This Arbitration Agreement ("Agreement") is made by and between _____ ("Community") and _____ ("You" or "Your").

Binding arbitration is the process of resolving a dispute or a grievance outside a court system by presenting it for decision to an impartial third party. Both sides in the dispute agree in advance to the choice of arbitrator and certify that they will abide by the arbitrator's decision. The procedures differ from those used in the courts, especially regarding burden of proof and presentation of evidence. Arbitration avoids costly litigation and offers a relatively speedy resolution as well as privacy for the disputants.

Because this Agreement addresses important legal rights, the Community encourages and recommends that you obtain the advice of legal counsel to review this Agreement prior to signing this document.

1. You agree that any dispute, claim or controversy of any kind between you and us arising out of, in connection with, or relating to the Residency Agreement to which this Agreement is attached which cannot be resolved by mutual agreement, will be submitted to and determined by professional arbitration in the county where Community is located. We will jointly agree on an arbitrator who will be selected according to state law and procedure. In reaching a decision, the arbitrator shall submit findings of fact and conclusions of law. Any direct arbitration costs incurred by you will be borne by you. Costs of arbitration, including our legal costs and attorney's fees, arbitration fees and similar costs will be our responsibility. If the arbitrator chooses to award the costs of arbitration against either party, the parties agree to pay such costs as directed by the arbitrator.
2. **Right to legal counsel.** You have the right to be represented by legal counsel in any arbitration proceedings.
3. **Arbitrator.** Arbitrations shall be administered by the American Arbitration Association ("AAA") under the procedures then in effect. Information regarding the AAA may be obtained from www.adr.org.
4. **Time Limitation.** Any demand for arbitration of a dispute must be requested and submitted prior to the lapse of two (2) years from the date on which the event

giving rise to the dispute occurred. A demand for arbitration must be submitted in writing by certified mail, return receipt requested to:

Community Name: _____

Community Address: _____

The failure to submit a request for arbitration within the two (2) year time-period shall serve as a bar to any subsequent request for arbitration.

5. **Binding Agreement.** This Agreement binds all parties to the Residency Agreement and their spouses, heirs, representatives, executors, Executive Directors, successors, and assigns. After the Residency Agreement is terminated, this Arbitration Agreement remains in effect for all claims resolution and unresolved disputes.
6. **Governing Law.** This Arbitration Agreement shall be governed by and interpreted under the Federal Arbitration Act, 9 U.S.C. Sections 1-16.
7. **Severability.** If any provision of this Arbitration Agreement is held to be invalid or unenforceable, the remainder of the agreement shall remain in full force and effect.

You understand that the result of this Arbitration Agreement is that claims, including personal injury claims that you may have against the Community, cannot be brought in a lawsuit in court before a judge or jury, and agree that all such claims will be resolved as described in this Arbitration Agreement.

By signing this Arbitration Agreement, the parties acknowledge that (a) they have received this Arbitration Agreement; and (b) they have read this Arbitration Agreement; and (c) they have executed this Arbitration Agreement intending to be legally bound by it this _____ day of _____, 20_____, (the "Effective Date").

Your Signature and Date

Print Your Name

Community Name

Community Representative Signature and Date

Print Name of Community Representative



ACH AUTHORIZATION FORM

Community: _____ Resident Name: _____

AUTOMATIC DRAFT

Financial Institution: _____

Account Type: ☐ Checking ☐ Savings

Routing Number: _____

Account Number: _____

Account Holder's Name(s): _____

Effective Date: _____

***** Attach a Voided Check*****

I hereby authorize Grand Brook Memory Care, hereinafter called COMPANY, to initiate debit entries and to initiate, if necessary, credit entries and adjustments to the account indicated below. ***Reoccurring charges are processed on or after the 5th of every month for the total billed charges (may include ancillary services for Salon, Supplies, etc. as used).***

This agreement shall be in full force and in effect until COMPANY has received written notification from me or my designated representative of its termination in such manner as to afford COMPANY and FINANCIAL INSTITUTION a reasonable opportunity to act on it.

I understand that it is my responsibility to notify COMPANY regarding any changes to the financial institution and/or account numbers to which payment will be debited at least 10 business days prior to the payment due date.

Signature: _____

Printed Name: _____



I acknowledge that Grand Brook Memory Care has provided me information regarding COVID19 vaccination.

☐ _____ has been fully vaccinated.
○ ○ ○

Date of Most Recent Vaccination/Booster Received- _____

☐ _____ has not been vaccinated but intends to vaccinate.

☐ _____ has not been vaccinated and does NOT intend to vaccinate.

☐ I prefer to decline disclosure of vaccination status. (Please note Grand Brook will treat a resident as unvaccinated in the event of an outbreak if unknown vaccination status.)

Responsible Party Signature

Date



RESIDENT MAILING REQUESTS

Resident: _____

Please indicate all parties from whom you would like to receive periodic mailings such as newsletters, outgoings, special event notices, and family support groups, etc.

Name _____

Relationship _____

Address _____

City _____

State _____ Zip _____

E-Mail Address _____

Name _____

Relationship _____

Address _____

City _____

State _____ Zip _____

E-Mail Address _____

Name _____

Relationship _____

Address _____

City _____

State _____ Zip _____

E-Mail Address _____



PHARMACY OPTIONS PAGE

Please check which option you would like.

Name of Resident _____

☐ I would like to use a pharmacy other than Grand Brook Memory Care preferred pharmacy and agree to be responsible for refilling/maintaining medication supply.

☐ I would like to use Grand Brook Memory Care preferred pharmacy (Please return the enclosed store charge agreement.)

Signature of responsible party

Date